

December 12, 2007



U.S. Department
of Transportation

400 Seventh St. S.W.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 13859
(SECOND REVISION)

EXPIRATION DATE: October 31, 2010

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Evonik Degussa Corporation
(Former Grantee: Degussa Corporation)
Parsippany, NJ
2. PURPOSE AND LIMITATIONS:
 - a. This special permit authorizes the transportation in commerce of packages containing the Division 2.3, Division 4.3, and Class 8 materials specified in paragraph 6 without meeting the segregation requirements in § 177.848. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Party status will not be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171- 180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 177.848(d) and (e)(3) in that Division 2.3 and Division 4.3 materials may not be transported in the same transport vehicle with Class 8 liquids except as specified herein.

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5. BASIS: This special permit is based on the application of Degussa dated November 21, 2006, submitted in accordance with § 107.109 and additional information dated November 7, 2007.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/Hazardous Material Description	Hazard Class/Division	Identification Number	Packing Group
Corrosive liquid, toxic, n.o.s. (Germanium tetrachloride)	8	UN2922	II
Trichlorosilane	4.3	UN1295	I
Silicon tetrachloride	8	UN1818	II
Dichlorosilane	2.3	UN2189	Hazard Zone B

7. SAFETY CONTROL MEASURES:

- a. PACKAGING - The materials specified in paragraph 6 must be packaged in accordance with the requirements of the Hazardous Materials Regulations.
- b. OPERATIONAL CONTROLS -
- (1) A freight container or transport vehicle may contain the Division 2.3, Division 4.3, and Class 8 materials specified in paragraph 6 above without meeting the segregation requirements specified in §§ 177.848(d) and (e)(3) under the following conditions:
- (i) the shipper loads the material, blocks and braces the material within freight container or transport vehicle and seals the freight container or transport vehicle;
- (ii) no other hazardous material may be loaded into the freight container or transport vehicle;

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(iii) compatible non-hazardous materials may be loaded into the freight container or transport vehicle; and

(iv) the shipper must seal the freight container or transport vehicle.

(v) no intermediate pickup or delivery of materials is authorized.

(2) A freight container or transport vehicle containing the materials specified in paragraph 6 above which is opened prior to final delivery, must meet the segregation requirements specified in §§ 177.848(d) and (e)(3).

8. SPECIAL PROVISIONS:

a. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

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Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Theodore L. Willke
Associate Administrator for Hazardous Materials Safety

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Address all inquiries to: Associate Administrator for
Hazardous Materials Safety, Pipeline and Hazardous Material
Safety Administration, U.S. Department of Transportation, East
Building PHH-30, 1200 New Jersey Avenue, Southeast,
Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the
Hazardous Materials Safety Homepage at
[http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.h
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